

## 24STCV25111 24STCV25111

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-21

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Case Number: 24STCV25111 Hearing Date: September 21, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

21, 2026

CASE NAME: Modvans,

Inc. v. Atlantic Casualty Insurance Company, Inc.

CASE NO.: 24STCV25111

MOTION

TO COMPEL RESPONSE TO DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS

MOVING PARTY: Defendant/Cross-Complainant

Atlantic Casualty Insurance Company, Inc.

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order to compel SetApart Accountancy Corp. to comply with a deposition subpoena  
for production of business records.

TENTATIVE RULING:

1. Motion

to compel response to deposition subpoena for production of business records is  
DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On September 30, 2024, Plaintiff, ModVans, Inc.  
(Plaintiff or ModVans) filed a Complaint against Defendants Atlantic  
Casualty Insurance Company, Nigel Green Insurance Agency, Inc.,  
and Amwins Access Insurance Services, LLC (Defendants) with three causes of  
action for: (1) Breach of the Duty to Pay a Covered Insurance Claim; (2) Breach  
of the Duty of Good Faith and Fair Dealing; and (3) Negligence.

;

According to the Complaint, Plaintiff had an insurance  
policy issued by Defendant Atlantic Casualty Insurance Company (Atlantic) (the  
Policy) that Defendant Nigel Green Insurance Agency, Inc. (Green) obtained for  
it by working with Defendant Atlantic's managing agent, Amwins Access Insurance  
Services, LLC (Amwins). Plaintiff alleges that on December 11, 2023, a fire  
destroyed its production facility which caused Plaintiff to sustain  
approximately \$5,800,500.00. Plaintiff further alleges that Defendants improperly  
bound the Policy at old coverage limits despite Plaintiff's negotiation  
for an increase and that Defendants are not performing under the  
Policy.

;

On November 8, 2024, Amwins filed an Answer.

;

On November 19, 2024, Green filed an Answer.

;

On December 26, 2024, Atlantic  
filed a demurrer which the court OVERRULED.

On April 24, 2025, Atlantic filed an Answer and a cross-complaint against Modvans for declaratory relief.

On May 9, 2025, Modvans filed an Answer to Atlantic's cross-complaint.

On April 28, 2026, Amwins filed the instant motion for summary judgment, or alternatively, summary adjudication (MSJ).

On April 29, 2026, Green filed an application for determination of good faith settlement which the court GRANTED.

On May 26, 2026, Amwins filed a motion to contest Green's good faith settlement which the court DENIED.

On June 30, 2026, Plaintiff filed an opposition to Amwins' MSJ. On July 9, 2026, Amwins filed a reply.

On July 20, 2026, the MSJ came on for hearing. After oral argument, the court ordered supplemental briefing. On August 3, 2026, Plaintiff filed a supplemental brief. On August 7, 2026, Amwins filed a supplemental brief.

On August 4, 2026, Atlantic filed the instant motion to compel compliance with third party subpoena. Oppositions were due on or before September 8, 2026. As of September 15, 2026, the court has not received any opposition.

#### LEGAL STANDARD:

"If a deponent fails to answer any question or to produce any document, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc. (CCP) § 2025.480(a).)

"This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040." (CCP § 2025.480(b).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.480(j).)

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

(CCP § 2023.030(a).)

#### ANALYSIS:

Atlantic contends relief is proper because they issued a subpoena to SetApart, the subpoena commanded production on July 20, 2026, they personally served it on SetApart, and SetApart failed to comply. The court has no oppositions.

Here, relief is premature. Notably, the subpoena is defective. First, the subpoena was issued on June 18, 2026 and personally served on SetApart's agent on July 6, 2026. (Declaration of Catherine A. Valloso ¶¶ 4, 5, 7, Exhibit A [proof of service], Exhibit B [deposition subpoena].) SetApart's response was due by July 20, 2026. (Id. at ¶ 6, Exhibit B.) Atlantic indicates that while this is only 14 days, now more than 15 days have elapsed, and they did not seek to enforce compliance on that date. (Ibid.) The code states that the deposition subpoena “shall command compliance . . . no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later.” (CCP § 2020.410(c).) On its face, then, the deposition subpoena is defective.<sup>[1]</sup> Relief is therefore premature.

Accordingly, the court DENIES Atlantic's motion to compel compliance.

CONCLUSION:

For  
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion  
to compel response to deposition subpoena for production of business records is  
DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 21, 2026 \_\_\_\_\_ Upinder  
S. Kalra

Judge  
of the Superior Court

[1]  
Atlantic's subjective intent not to enforce the written production date is of  
no moment.